

\$9,657.50 is sought. *Id.* at ¶10. Defendants' counsel indicates that they are utilizing rates below their "standard rates" typically charged. *Id.* at ¶8.

Plaintiff filed an opposition declaration on September 17, 2026. See Declaration of Eric Bryan Seuthe filed September 17, 2026 ("Seuthe Decl."). This declaration largely addresses tangential matters and fails to address, with particularity, the claimed expenses relating to the litigation of the subject Motions to Compel Further Responses.

The Court has considered the totality of the circumstances and concludes that Monetary Sanctions in the amount of \$6,175.00 are just and reasonable. In fixing said amount, the Court has considered all evidence in the record before the Court, including the further declarations submitted. The Court also mitigated the award in the exercise of its discretion and in light of the totality of the circumstances bearing on this discovery dispute, including, but not limited to, the substance of the underlying discovery dispute and the outcome achieved, as well as the Court's own independent review of the nature and extent of the claimed billings to litigate the matters.

Disposition

The Court further finds and orders as follows:

1. The Monetary Sanctions shall be paid by Plaintiff to Defendants in the sum of **\$6,175.00** within **sixty (60) calendar days** of notice of entry of this order.
2. Defendants shall issue the order after hearing.

20. 9:01 AM CASE NUMBER: C25-03371
CASE NAME: CSAA INSURANCE EXCHANGE VS. NICOLAS CALDERON MARTINEZ
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEMAND FOR INSPECTION, SET ONE NOS. 4-5
FILED BY: CSAA INSURANCE EXCHANGE
TENTATIVE RULING:

PARTIES TO APPEAR.

21. 9:01 AM CASE NUMBER: C25-03371
CASE NAME: CSAA INSURANCE EXCHANGE VS. NICOLAS CALDERON MARTINEZ
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE NO. 2.6(B)
FILED BY: CSAA INSURANCE EXCHANGE
TENTATIVE RULING:

PARTIES TO APPEAR.

Law & Motion
Add On

22. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: MASOUDI, ELISABETH B.

CIVIL

TENTATIVE RULING:

Before the Court is a demurrer by defendant Elisabeth Masoudi to the second amended complaint of plaintiff Robert Rodriguez.

Background

Plaintiff is a former attorney for defendant Elisabeth Masoudi who represented Masoudi in her dissolution proceeding in this Court, Case No. D13-03393 ("Dissolution Action"). (Second Am. Compl. ("2AC") ¶ 8.) Plaintiff alleges that beginning in or about April 2015, he served a written Notice of Attorney's Lien on his former client Masoudi, and he alleges it was "also noticed to" defendants Simona Yana Zakheim and Hyden Zakheim, LLP (the "Zakheim Defendants"). (2AC ¶ 8 and Exh. A [Notice of Attorney's Lien for Fees and Costs unfiled but dated April 14, 2015 with proof of service on Dante Miranda of Burns & Miranda].) Though not specifically alleged, by implication the Zakheim Defendants represented Masoudi in the Dissolution Action sometime after Plaintiff's representation ended.

Plaintiff filed suit against Masoudi in July 2019 for nonpayment of the attorneys' fees Plaintiff claims are owed to him pursuant to his fee agreement with Masoudi. (2AC ¶ 16.) Plaintiff alleges on July 7, 2024, for the first time Plaintiff discovered that Masoudi had obtained a substantial recovery from the dissolution proceeding and used, transferred or disposed of the proceeds without satisfying his attorney's lien. (2AC ¶ 18.) He alleges that defendants had exclusive knowledge of the facts and actively concealed the existence of the proceeds of the dissolution from him despite knowledge of his attorney's lien. (2AC ¶ 20.) Plaintiff's complaint initiating this action was filed May 16, 2025.

Plaintiff alleges nine causes of action on various theories for interference with his attorney's lien and failure to hold the assets from Masoudi's dissolution subject to his attorney's lien. His causes of action for intentional and negligent interference with prospective economic advantage (1st and 2nd C/As) are asserted only against the Zakheim Defendants. The claims for intentional and negligent misrepresentation (8th and 9th C/As) are asserted only against Masoudi. Plaintiff alleges causes of action for conversion (3rd C/A), civil conspiracy (4th C/A), equitable lien enforcement and accounting (5th C/A), constructive trust (6th C/A), and declaratory relief (7th C/A) against all defendants.

Legal Standards for Ruling on Demurrer

In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of*